

1. 26CV00982 Cole, Juan v. Neher, Timothy

EVENT: Specially Appearing Defendant Timothy Neher's Motion to Quash Service of Summons

There is a fundamental problem with Ms. Diaz's declaration. She does not allege to have personally witnessed the circumstances in which Mr. Chamberlin served Mr. Neher.

The Court will hear from Mr. Chamberlin directly regarding the events surrounding service of process.

2. 26CV01457 In re: Blaker, Emily

EVENT: Change of name (adult)

The Court is in receipt of the proof of publication and will sign the decree provided.

3. 153846 Cach LLC v. Ford, Christina M

EVENT: Motion to Vacate Judgment

Motion to Vacate Judgment is GRANTED. The Court will sign the proposed order. A case Management Conference is hereby scheduled for September 9, 2026 at 10:30am.

4-5. 26CV01665 Perondi, Christopher v. Bingaman, Renee

EVENT: (1) Demurrer to Plaintiff's Complaint

(2) Defendant's Motion for Sanctions Against Plaintiff and Plaintiff's Counsel Pursuant to CCP 128.7

Demurrer

Meet and Confer

Plaintiff's arguments re: meet and confer are noted, however, CCP 435.5(a)(4) prohibits the Court from denying a motion on meet and confer grounds.

CCP 430.60 and CRC 3.1320

Plaintiff's objections on these grounds are noted. However, the Court is not overruling the demurrer on these grounds.

Extrinsic Evidence

The opposition references a gift affidavit and text messages, all of which are extrinsic to the Complaint. It is well settled that a demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905) As a result, the Court cannot consider this evidence at this stage.

Statute of Frauds

The general rule is that oral contracts for real property are invalid. (See Civil Code 1624(a)(3)) However, equitable estoppel may preclude the use of a statute of frauds defense. (*Byrne v. Laura* (1997) 52 Cal.App.4th 1054, 1068) The doctrine of estoppel to assert the statute of frauds has been consistently applied by the courts of this state to prevent fraud that would result from refusal to enforce oral contracts in certain circumstances. Such fraud may inhere in the unconscionable injury that would result from denying enforcement of the contract after